SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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OPEH LLC,

Plaintiff,

-against-

MICHAEL E. BLEICH and
ALEXIS K. BLEICH,

Defendants.

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Index No.

AFFIDAVIT IN SUPPORT OF MOTION FOR SUMMARY JUDGMENT IN LIEU OF COMPLAINT

STATE OF NEW YORK)
) SS.:
COUNTY OF NEW YORK)

Aaron Sosnick, being duly sworn, deposes and says:

1. I am a member of plaintiff OPEH LLC ("OPEH" or "Plaintiff"). I submit this affidavit in support of OPEH's motion, submitted pursuant to CPLR §3213, for summary judgment in lieu of complaint in the sum of $2,233,007, together with interest accruing until paid at the agreed upon rate of 15% *per annum* ($930.42 *per diem*), and the accrued unpaid interest in the amount of $155,070, plus OPEH's reasonable costs of collection including, without limitation, reasonable attorneys' fees, and the costs of this action, based upon Defendants' failure to make any payments pursuant to a promissory note, an instrument for the payment of money only, promising to pay OPEH, *inter alia*, $2,233,007, for value received.

2. Upon information and belief, defendants Michael E. Bleich and Alexis K. Bleich (the "Defendants") are individuals residing at 13 Harrison Street, Unit 1, New York, New York 10013.

3. In consideration for OPEH's loan of $2,233,007 (the "Principal Amount") to Defendants, Defendants delivered a promissory note as security to OPEH in the amount of $2,233,007 (the "Promissory Note") on or about January 11, 2018. A true copy of the Promissory Note is annexed hereto as Exhibit A.

4. The Promissory Note states that the principal balance and interest accrued thereon are due and payable by Defendants to OPEH, on September 1, 2018 (the "Maturity Date"). *See*, Section 3, Exhibit A.

5. The Promissory Note states that "[i]nterest shall accrue on the principal balance from time to time outstanding on this Note at a rate of 10% per annum, compounded annually. All interest shall be calculated on the basis of a year of three hundred sixty (360) days for the actual number of days elapsed. All accrued and unpaid interest shall be payable on the Maturity Date." *See*, Section 1, Exhibit A.

6. The Promissory Note defines an Event of Default, among other things, as "[t]he occurrence of any of the following shall constitute an "Event of Default" under this Note: (i) the [Defendant]s shall fail to pay within ten (10) Business Days any interest when due; (ii) the [Defendant]s shall fail to pay within ten (10) Business Days the Principal Amount when due ..." *See*, Section 7, Exhibit A.

7. The Promissory Note states that "[i]f an Event of Default shall occur and be continuing, the entire unpaid Principal Amount of this Note and accrued interest thereon shall immediately become due and payable upon the delivery of written notice to the [Defendant]s that [OPEH] elects to accelerate payment of this Note. Failure to exercise such option shall not constitute a waiver of any of the [OPEH]'s rights to exercise such option in the event of a subsequent default." *See*, Section 7, Exhibit A.

8. Defendants failed to pay OPEH the accrued interest on the Principal Amount on September 1, 2018, or within ten (10) business days thereafter.

9. Defendants failed to pay OPEH the Principal Amount on September 1, 2018, or within ten (10) business days thereafter.

10. Defendants owe OPEH $155,070 in accrued interest on the Principal Amount due under the Promissory Note as of September 17, 2018.

11. Defendants owe OPEH $2,233,007 as the Principal Amount due under the Promissory Note as of September 17, 2018.

12. OPEH delivered a notice to Defendants apprising them of the Events of Default on September 25, 2018. A copy of the Event of Default Notice is annexed hereto as Exhibit B.

13. The Promissory Note states that "[d]uring any period an Event of Default has occurred and is continuing after the expiration of any cure period, any amount of principal then outstanding shall bear interest (the "Default Interest") at a rate equal to 15% per annum, compounded annually. All interest shall be calculated on the basis of a year of three hundred sixty (360) days for the actual number of days elapsed." *See*, Section 7, Exhibit A.

14. The Promissory Note states that "[i]n addition to any other sums payable by the [Defendant]s hereunder, in the event of an Event of Default, the [Defendant]s agree to pay [OPEH]'s reasonable costs of collection and reasonable attorneys' fees incurred in the collection of the obligations of the [Defendant]s under this Note and in the enforcement of any provision hereof, whether suit be brought or not." *See*, Section 14, Exhibit A.

15. No prior application has been made for the same or similar relief.

WHEREFORE it is respectfully requested that judgment be entered in favor of Plaintiff OPEH LLC and against Defendants Michael E. Bleich and Alexis K. Bleich in the amount of $2,233,007 with interest from September 17, 2018, calculated at the Promissory Note's default rate of 15% *per annum* ($930.42 *per diem*), until paid, and the accrued unpaid interest in the amount of $155,070, but in no event less than the amount of $2,388,077, plus OPEH's cost of collection including, without limitation, reasonable attorneys' fees and the costs of this action, and such other and further relief that this Court deems just and proper.

Sworn to before me this
26 day of September, 2018.

Rhonda Campbell
Notary Public

RHONDA L CAMPBELL
NOTARY PUBLIC-STATE OF NEW YORK
No. 01CA6254059
Qualified in Kings County
My Commission Expires January 09, 2020